

	Case Name	Tentative
50	<i>Clear Vision Financial LLC vs. Consumer Legal Group, P.C.</i>	Defendants Consumer Legal Group, P.C. and Solomon Feig’ Motions to Deem Requests for Admissions, Sets One, Admitted, and compel initial responses to Special Interrogatories, Requests for Production of Documents, and Form Interrogatories, Sets One, from Plaintiffs Clear Vision Financial LLC and Perfect Financial LLC appear to be moot other than sanctions. Plaintiffs responded to the discovery on May 27, 2026. (McGee Decl., ¶14, Exs. A-D.) Ignoring the objections, the Court finds that the substantive answers are more complete and straightforward than not. Defendants argue that the presence of objections renders the responses not in substantial compliance because objections were waived. But the assertion of waived objections does not necessarily prevent “substantial compliance. (See e.g. Katayama v. Continental Investment Group (2024) 105 Cal.App.5th 898, 909.) The Court has reviewed the responses and finds them in substantial compliance. The Court notes that a motion for relief from waiver of objections is set for hearing on 8/28/26 and will resolve the issue of whether the objections are proper or further responses need be served. Sanctions, however, remain at issue. If a party fails to serve a timely response, and the propounding party moves for and obtains a court order compelling a response, the trial court must impose a monetary sanction against the delinquent party unless that party acted with “substantial justification” or the sanction would otherwise be

		unjust. (See e.g. CCP §§ 2030.290, subd. (c); 2031.300, subd. (c); Rules of Court, rule 3.1348(a), “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” Here, sanctions are warranted. The Court orders Plaintiffs and their Counsel of record McGee & Associates to pay reasonable attorney’s fees in the amount of \$2,660 plus \$120 in filing fees for a total of \$2,780 within 30 days. Defendants are ordered to serve notice of this Order. In light of the Court’s ruling, Plaintiffs’ ex parte application filed on June 8, 2026, to continue the hearing on Defendants’ motion to compel is denied as moot. All future dates remain.
51	<i>Farah vs. Top Hill, LLC</i>	Plaintiff Fadi Farah’s general and special demurrers to Defendants Top Hill, LLC’s, Lucky 1, LLC’s, Adnan Elias’, Alaa Elias’ and Inad Elias’ First Amended Answer are overruled. An answer to a complaint shall contain: (1) the general or specific denial of the material allegations of the complaint controverted by the defendant and (2) a statement of any new matter constituting a defense. (Code Civ. Proc. § 431.30(b).) The same pleading of ultimate facts rather than legal conclusions is required in pleading an answer as in pleading a complaint. See <i>FPI Development, Inc. v. Nakashimi</i> (1991) 231 Cal. App. 3d 367, 384 (stating rule that answer